

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-28

COOL LIVING LLC,

COMPLAINANT,

v.

ALPI U.S.A., INC.,

ALPI AIR & SEA A/S,

RESPONDENTS.

MOTION TO WITHDRAW AS COUNSEL

Holland & Knight LLP, Christopher R. Nolan, and Ashleigh T. Higgs (collectively, the “Firm”), file this Motion to Withdraw as Counsel for Complainant, Cool Living LLC (“Cool Living” or Complainant) pursuant to 46 C.F.R. § 502.23(e) and Rule 1.16 of the American Bar Association's Model Rules of Professional Conduct. In support thereof, the Firm states as follows:

1. The Firm respectfully seeks leave to withdraw as counsel for Cool Living. Despite efforts to address strategic differences of opinion, irreconcilable differences have arisen between the Firm and Cool Living which regrettably materially impact the attorney-client relationship and make the Firm unable to continue its representation. In addition, the Firm and Cool Living are in dispute as to whether Cool Living has failed to perform its obligations to the Firm. The Firm is also filing a motion to withdraw as counsel in the

parallel state court proceeding, ALPI U.S.A., INC. et al v. COOL LIVING OY et al, 655504/2025).

2. Withdrawal is permitted pursuant to 46 C.F.R. § 502.23(e) and Rule 1.16 of the American Bar Association's Model Rules of Professional Conduct. Specifically, in connection with the standards set forth above, withdrawal can be accomplished without material adverse effect on the interests of the client in that there are no pending motions, discovery obligations have been satisfied (in responses to document request and interrogatories, along with the production of documents), no outstanding discovery demands are pending and no notices of deposition issued (though ALPI advised it will seek one deposition of Cool Living when counsel for the parties discussed H&K's withdrawal motion, and Cool Living has recently indicated it will pursue depositions).
3. Cool Living has been given reasonable warning that the Firm will be withdrawing as counsel. Cool Living has advised that it is seeking substitute counsel.
4. Withdrawal can be accomplished without material adverse effect on the interest of Cool Living or any other party to this litigation. The parties have until June 13, 2026 to finalize their discovery efforts, and briefing is not due until July 13, 2026. The Firm has further agreed to take all reasonable steps to facilitate a smooth and efficient transition of its file to substitute counsel or Cool Living.
5. In the interim, all filings shall be sent to Cool Living via mail and email at its last known address:

Name: Cool Living LLC

Address: 8 The Green, Suite R, Dover, Delaware 19901

Email: Tony Hopkins email address (tony@thatcooliving.com)
Anna Farkas email address (anna@thatcooliving.com)

Accordingly, Holland and Knight, Christopher R. Nolan, and Ashleigh T. Higgs respectfully request that the Presiding Officer: (i) grant the Firm's Motion to Withdrawal as Counsel for Complainant, Cool Living LLC, and (ii) provide such other relief as is deemed just and proper.

Meet and Confer Certification

Pursuant to 46 C.F.R. § 502.71(a), on May 29, 2026, counsel for Cool Living LLC conferred with counsel for ALPI U.S.A., Inc. and ALPI Air & Sea A/S ("ALPI") regarding the relief requested herein. Counsel for ALPI advised that it does not oppose the instant motion.

Dated: June 4, 2026

Respectfully Submitted

HOLLAND & KNIGHT LLP

By: /s/ Ashleigh T. Higgs
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Counsel to Cool Living LLC

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel for Respondent and Cool Living at the following email addresses:

Cool Living LLC
8 The Green, Suite R, Dover, Delaware 19901
Tony Hopkins email address (tony@thatcooliving.com)
Anna Farkas email address (anna@thatcooliving.com)

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Executed: June 4, 2026

/s/ Ashleigh T. Higgs